

ALITO, J., dissenting

we now find highly objectionable, such as the exclusion of women from jury service? At the time of the adoption of the Sixth Amendment (and for many years thereafter), women were not regarded as fit to serve as a defendant's peers. Unless one is willing to freeze in place late 18th-century practice, it is necessary to find a principle to distinguish between the features that were incorporated and those that were not. To do this, Justice White's opinion for the Court in *Williams* looked to the underlying purpose of the jury-trial right, which it identified as interposing a jury of the defendant's peers to protect against oppression by a "‘corrupt or overzealous prosecutor’" or a "‘compliant, biased, or eccentric judge.’" 399 U. S., at 100 (quoting *Duncan*, 391 U. S., at 156).

The majority decries this "functionalist" approach but provides no alternative. It does not claim that the Sixth Amendment incorporated every feature of common-law practice, but it fails to identify any principle for identifying the features that were absorbed. On the question of jury service by women, the majority's only answer, buried in a footnote, is that the exclusion of women was outlawed by "further constitutional amendments," *ante*, at 101, n. 47, presumably the Fourteenth Amendment. Does that mean that the majority disagrees with the holding in *Taylor v. Louisiana*, 419 U. S. 522 (1975)—another opinion by Justice White—that the exclusion of women from jury service violates *the Sixth Amendment*? *Id.*, at 531, 533–536.²⁶

²⁶ The majority also notes that the Judiciary Act of 1789 pegged the qualifications for service on federal juries to those used in the State in which a case was tried, *ante*, at 100–101, n. 47, but since all States barred women, see *Taylor*, 419 U. S., at 536, it is hard to see how the 1789 Act can provide a ground for distinguishing the common law's requirement of unanimity from its insistence that women were not fit to serve.

Jury practice at the time of the founding differed from current practice in other important respects. Jurors were not selected at random. "[P]ublic officials called selectmen, supervisors, trustees, or 'sheriffs of the parish' exercised what Tocqueville called 'very extensive and very arbitrary'